

VCU324905 Perez, Christine vs. Alexis Nails, Inc.

County: tulare

Division: Civil Law and Motion

Department: 9

Hearing date: 2026-07-20

Motion: Plaintiff's Motion to Set Aside Dismissal

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Re: Perez, Christine vs. Alexis Nails, Inc.

Case No.: VCU324905

Date: July 20, 2026

Time: 8:30 A.M.

Dept. 9-The Honorable Nathan D. Ide

Motion: Plaintiff's Motion to Set Aside Dismissal

Tentative Ruling: To grant the motion

Facts

Plaintiff alleges premises liability as to an incident occurring August 19, 2023 while receiving nail services at Fashion Nails and Spa II, located at 1428 North Ben Maddox Way, Visalia, California 93292.

Plaintiff's complaint, filed August 19, 2025, named the following Defendants:

ALEXIS NAILS, INC. DBA FASHION NAILS AND SPA

BINH QUANG BUI DBA FASHION NAILS AND SPA, and

DOES 1 to 20

On October 16, 2026, Defendants ALEXIS NAILS, INC. dba FASHION NAILS AND SPA and BINH QUANG BUI (erroneously sued as Binh Quang Bui dba Fashion Nails and Spa) filed an answer to the complaint.

On December 19, 2025, Plaintiff filed an amendment to complaint regarding an incorrect naming, noting:

"Plaintiff, having designated a defendant in the complaint by the incorrect name of Alexis Nails, Inc. dba Fashion Nails and Spa, and having discovered the defendant's true name to be, Fashion Nails Enterprise, Inc. dba Fashion Nails and Spa II, Plaintiff amends the complaint by substituting the true name for the incorrect name wherever it appears in the complaint." (emphasis in original.)

Thereafter, on January 30, 2026, Plaintiff filed a notice of dismissal with prejudice of the complaint as to "Defendants Fashion Nails Enterprise, Inc. dba Fashion Nails and Spa II and Bing Quang Bui Fashion Nails and Spa ONLY"

On May 19, 2026, Plaintiff filed this motion under Code of Civil Procedure section 473(b) for relief from the dismissal. In support, Plaintiff notes the following sequence of events:

7. On January 28, 2026, Belinda Porras, a Legal Assistant/Paralegal at Skane Mills [counsel for Defendants Alexis Nails, Inc. dba Fashion Nails and Spa and Binh Quang Bui], transmitted a Request for Dismissal to handling attorney Sara Javid [counsel for Plaintiff] listing the dismissed parties as "Alexis Nails, Inc. dba Fashion Nails and Spa and Binh Quang Bui ONLY." Sara Javid signed the form and returned it the same day. (Exhibit E.)

8. On January 30, 2026, Belinda Porras notified Sara Javid that the court clerk had rejected the original dismissal because the party names did not conform to the operative Complaint as amended. The clerk's rejection was legally correct: the Doe Amendment had replaced "Alexis Nails, Inc." with "Fashion Nails Enterprise, Inc." throughout the Complaint, making the original form nonconforming.

9. Upon receipt of the clerk's rejection notification, the correct response was to recognize that Alexis Nails, Inc. was no longer a party by operation of the Doe Amendment and to advise defense counsel that only Binh Quang Bui needed to be dismissed. That recognition did not occur. Instead, handling attorney Sara Javid signed the revised dismissal presented by defense counsel now naming "Fashion Nails Enterprise, Inc. dba Fashion Nails and Spa II and Binh Quang Bui" and returned it to defense counsel for filing, without consulting supervising counsel. Defense counsel filed it that same day, January 30, 2026, and the court entered it with prejudice. (Exhibits F, G.)

10. The filing of the revised dismissal was the direct result of the handling attorney's mistake and inadvertence. Sara Javid did not recognize that the Doe Amendment had legally extinguished Alexis Nails, Inc. as a party, and mistakenly believed the revised form was a technical correction to the same already-agreed-upon dismissal of the wrong parties." (Declaration of Bauman ¶¶7-10)

Further that this issue came to light at the case management conference on April 27, 2026 and that this motion followed. (Declaration of Bauman ¶11.)

No opposition to this motion appears to have been filed.

Authority and Analysis

Where an "attorney affidavit of fault" is filed, there is no requirement that the attorney's mistake inadvertence, etc., be excusable. Relief must be granted even where the default or dismissal resulted from inexcusable neglect by the defendant's attorney (Standard Microsystems Corp. v. Winbond Electronics Corp. (2009) 179 Cal.App.4th 868 897 (disapproved on other grounds in Even Zohar Const. & Remodeling, Inc. v. Bellaire Townhouses LLC (2015) 61 Cal.4th 830, 845)

The Court is not concerned with the reason for the attorney's inexcusable mistake (*Billing v. Health Plan of America* (1990) 225 Cal.App.3d 250, 256.) Rather, the trial court may deny the motion if it finds that the attorney's declaration of fault is not credible. (*Cowan v. Krayzman* (2011) 196 Cal.App.4th 907, 915)

The Court accepts counsel's declaration as to the mistake regarding the dismissal as to the amendment, its effect, and the naming of the incorrect parties on the dismissal entered in this matter.

The purpose of the mandatory relief section of section 473(b) is "to alleviate the hardship on parties who lost their day in court due solely to an inexcusable failure to act on the part of their attorneys." (*Zamora v. Clayborn Contracting Group, Inc.* (2002) 26 Cal.4th 249, 257.) The Court, therefore, grants the motion, vacates the dismissal of Defendant Fashion Nails Enterprise, Inc. dba Fashion Nails and Spa II and reinstates Defendant Fashion Nails Enterprise, Inc. dba Fashion Nails and Spa II as a defendant in this matter.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.